

NAPCS Unionization Research — State — Charter Sector Overview

Mississippi — NLRB R15 Jurisdiction — June 6, 2026 [RESEARCH DEFERRED]

NAPCS Unionization Research • June 6, 2026 • Template v8.0 • TIER 2D — RESEARCH DEFERRED

Section 1: State Overview

State	Mississippi
Labor Board	NLRB R15 — National Labor Relations Board, Region 15 (New Orleans)
Governing Law	Miss. Code Ann. §37-28 (Mississippi Charter School Act). Charter schools are independent employers. NLRB R15 private employer framework applies.
Federal NLRB Jurisdiction	YES — All MS charter schools are independently operated nonprofits — NLRB R15 jurisdiction.
Right-to-Work	Right-to-Work State — Miss. Code Ann. §71-1-47
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — RTW state; no card-check statute.
Research Status	DEFERRED — Executive Sponsor direction, June 7, 2026 (PDR-018). Sector assumed unorganized. No school-level research conducted.

Section 2: Charter Sector Landscape

Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized. Charter universe and enrollment figures are sourced from Charter School Registry v133 and NCES ELSI 2024–25. No school-level research has been conducted.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	10	100%	Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized.
Total Charter Schools in Mississippi	10	100%	Source: Charter School Registry v133 (NCES ELSI 2024–25).

Charter Sector Enrollment

Total Charter Enrollment	3,977 students — 0.9% of state K–12 enrollment (431,864 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	N/A — research deferred; sector assumed unorganized
Students in Organized Charter Schools	N/A — research deferred; sector assumed unorganized
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State	National	Organized	Total Enrollment
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		Campuses	Campuses †	in State	
Joel E. Smilow Prep	Network‡	2	—	—	1,068
TOTAL — All CMO/EMO Schools in Mississippi		2		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 network (type unclassified). Approximately 8 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 6, 2026.

1: Legal & Jurisdictional Framework Miss. Code Ann. §37-28 (Mississippi Charter School Act). Charter schools are independent employers. NLRB R15 private employer framework applies. Mississippi is a right-to-work state (Miss. Code Ann. §71-1-47). Charter schools in Mississippi are subject to NLRB jurisdiction as private employers (NLRB R15). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.
2: Charter Sector Structure Mississippi operates 10 open-enrollment charter schools, enrolling approximately 3,977 students. 1 charter management organizations and education management organizations operate in Mississippi. The largest networks by campus count are Joel E. Smilow Prep (2 campuses in state). Approximately 8 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above. No school-level union research has been conducted. Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026).

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of charter school employee organizing has been identified in Mississippi. The sector is small and recently established; coverage focuses on school performance and authorizer oversight.

Legislative Context

No charter-sector collective bargaining legislation has been introduced in the Mississippi Legislature. Mississippi charter law (Miss. Code Ann. §37-28) does not address employee collective bargaining.

Section 6: Contract & CBA Access Registry

No collective bargaining agreements documented for this state. Research deferred — sector assumed unorganized (PDR-018, June 7, 2026).